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CHRISTINE LUCHOK FALLON

REPORTER OF DECISIONS



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SUPREME COURT OF THE UNITED STATES

ALLOTMENT OF JUSTICES

It is ordered that the following allotment be made of the Chief Justice and Associate Justices of this Court among the circuits, pursuant to Title 28, United States Code, Section 42, and that such allotment be entered of record, effective October 19, 2018, viz.:

For the District of Columbia Circuit, JOHN G. ROBERTS, JR., Chief Justice.

For the First Circuit, STEPHEN BREYER, Associate Justice.

For the Second Circuit, RUTH BADER GINSBURG, Associate Justice.

For the Third Circuit, SAMUEL A. ALITO, JR., Associate Justice.

For the Fourth Circuit, JOHN G. ROBERTS, JR., Chief Justice.

For the Fifth Circuit, SAMUEL A. ALITO, JR., Associate Justice.

For the Sixth Circuit, SONIA SOTOMAYOR, Associate Justice.

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For the Eleventh Circuit, CLARENCE THOMAS, Associate Justice.

For the Federal Circuit, JOHN G. ROBERTS, JR., Chief Justice.

October 19, 2018.

(For next previous allotment, see 586 U. S., Pt. 1, p. III.)

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CASES ADJUDGED
IN THE
SUPREME COURT OF THE UNITED STATES
AT
OCTOBER TERM, 2019

DEPARTMENT OF HOMELAND SECURITY ET AL. *v.*
REGENTS OF THE UNIVERSITY OF
CALIFORNIA ET AL.

CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR
THE NINTH CIRCUIT

No. 18–587. Argued November 12, 2019—Decided June 18, 2020*

In 2012, the Department of Homeland Security (DHS) issued a memorandum announcing an immigration relief program known as Deferred Action for Childhood Arrivals (DACA), which allows certain unauthorized aliens who arrived in the United States as children to apply for a two-year forbearance of removal. Those granted such relief become eligible for work authorization and various federal benefits. Some 700,000 aliens have availed themselves of this opportunity.

Two years later, DHS expanded DACA eligibility and created a related program known as Deferred Action for Parents of Americans and Lawful Permanent Residents (DAPA). If implemented, that program would have made 4.3 million parents of U. S. citizens or lawful

*Together with No. 18–588, *Trump, President of the United States, et al. v. National Association for the Advancement of Colored People et al.*, on certiorari before judgment to the United States Court of Appeals for the District of Columbia Circuit, and No. 18–589, *Wolf, Acting Secretary of Homeland Security, et al. v. Batalla Vidal et al.*, on certiorari before judgment to the United States Court of Appeals for the Second Circuit.

permanent residents eligible for the same forbearance from removal, work eligibility, and other benefits as DACA recipients. Texas, joined by 25 other States, secured a nationwide preliminary injunction barring implementation of both the DACA expansion and DAPA. The Fifth Circuit upheld the injunction, concluding that the program violated the Immigration and Nationality Act (INA), which carefully defines eligibility for benefits. This Court affirmed by an equally divided vote, and the litigation then continued in the District Court.

In June 2017, following a change in Presidential administrations, DHS rescinded the DAPA Memorandum, citing, among other reasons, the ongoing suit by Texas and new policy priorities. That September, the Attorney General advised Acting Secretary of Homeland Security Elaine C. Duke that DACA shared DAPA's legal flaws and should also be rescinded. The next day, Duke acted on that advice. Taking into consideration the Fifth Circuit and Supreme Court rulings and the Attorney General's letter, Duke decided to terminate the program. She explained that DHS would no longer accept new applications, but that existing DACA recipients whose benefits were set to expire within six months could apply for a two-year renewal. For all other DACA recipients, previously issued grants of relief would expire on their own terms, with no prospect for renewal.

Several groups of plaintiffs challenged Duke's decision to rescind DACA, claiming that it was arbitrary and capricious in violation of the Administrative Procedure Act (APA) and infringed the equal protection guarantee of the Fifth Amendment's Due Process Clause. District Courts in California (*Regents*, No. 18–587), New York (*Batalla Vidal*, No. 18–589), and the District of Columbia (*NAACP*, No. 18–588) all ruled for the plaintiffs. Each court rejected the Government's arguments that the claims were unreviewable under the APA and that the INA deprived the courts of jurisdiction. In *Regents* and *Batalla Vidal*, the District Courts further held that the equal protection claims were adequately alleged, and they entered coextensive nationwide preliminary injunctions based on the conclusion that the plaintiffs were likely to succeed on their APA claims. The District Court in *NAACP* took a different approach. It deferred ruling on the equal protection challenge but granted partial summary judgment to the plaintiffs on their APA claim, finding that the rescission was inadequately explained. The court then stayed its order for 90 days to permit DHS to reissue a memorandum rescinding DACA, this time with a fuller explanation of the conclusion that DACA was unlawful. Two months later, Duke's successor, Secretary Kirstjen M. Nielsen, responded to the court's order. She declined to disturb or replace Duke's rescission decision and instead

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explained why she thought her predecessor’s decision was sound. In addition to reiterating the illegality conclusion, she offered several new justifications for the rescission. The Government moved for the District Court to reconsider in light of this additional explanation, but the court concluded that the new reasoning failed to elaborate meaningfully on the illegality rationale.

The Government appealed the various District Court decisions to the Second, Ninth, and D. C. Circuits, respectively. While those appeals were pending, the Government filed three petitions for certiorari before judgment. Following the Ninth Circuit affirmance in *Regents*, this Court granted certiorari.

Held: The judgment in No. 18–587 is vacated in part and reversed in part; the judgment in No. 18–588 is affirmed; the February 13, 2018 order in No. 18–589 is vacated, the November 9, 2017 order is affirmed in part, and the March 29, 2018 order is reversed in part; and all of the cases are remanded.

No. 18–587, 908 F. 3d 476, vacated in part and reversed in part; No. 18–588, affirmed; and No. 18–589, February 13, 2018 order vacated, November 9, 2017 order affirmed in part, and March 29, 2018 order reversed in part; all cases remanded.

THE CHIEF JUSTICE delivered the opinion of the Court, except as to Part IV, concluding:

1. DHS’s rescission decision is reviewable under the APA and is within this Court’s jurisdiction. Pp. 16–20.

(a) The APA’s “basic presumption of judicial review” of agency action, *Abbott Laboratories v. Gardner*, 387 U. S. 136, 140, can be rebutted by showing that the “agency action is committed to agency discretion by law,” 5 U. S. C. § 701(a)(2). In *Heckler v. Chaney*, the Court held that this narrow exception includes an agency’s decision not to institute an enforcement action. 470 U. S. 821, 831–832. The Government contends that DACA is a general non-enforcement policy equivalent to the individual non-enforcement decision in *Chaney*. But the DACA Memorandum did not merely decline to institute enforcement proceedings; it created a program for conferring affirmative immigration relief. Therefore, unlike the non-enforcement decision in *Chaney*, DACA’s creation—and its rescission—is an “action [that] provides a focus for judicial review.” *Id.*, at 832. In addition, by virtue of receiving deferred action, 700,000 DACA recipients may request work authorization and are eligible for Social Security and Medicare. Access to such benefits is an interest “courts often are called upon to protect.” *Ibid.* DACA’s rescission is thus subject to review under the APA. Pp. 16–19.

DEPARTMENT OF HOMELAND SECURITY *v.*
REGENTS OF UNIV. OF CAL.

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(b) The two jurisdictional provisions of the INA invoked by the Government do not apply. Title 8 U. S. C. § 1252(b)(9), which bars review of claims arising from “action[s]” or “proceeding[s] brought to remove an alien,” is inapplicable where, as here, the parties do not challenge any removal proceedings. And the rescission is not a decision “to commence proceedings, adjudicate cases, or execute removal orders” within the meaning of § 1252(g). Pp. 19–20.

2. DHS’s decision to rescind DACA was arbitrary and capricious under the APA. Pp. 20–33.

(a) In assessing the rescission, the Government urges the Court to consider not just the contemporaneous explanation offered by Acting Secretary Duke but also the additional reasons supplied by Secretary Nielsen nine months later. Judicial review of agency action, however, is limited to “the grounds that the agency invoked when it took the action.” *Michigan v. EPA*, 576 U. S. 743, 758. If those grounds are inadequate, a court may remand for the agency to offer “a fuller explanation of the agency’s reasoning *at the time of the agency action*,” *Pension Benefit Guaranty Corporation v. LTV Corp.*, 496 U. S. 633, 654 (emphasis added), or to “deal with the problem afresh” by taking *new* agency action, *SEC v. Chenery Corp.*, 332 U. S. 194, 201. Because Secretary Nielsen chose not to take new action, she was limited to elaborating on the agency’s original reasons. But her reasoning bears little relationship to that of her predecessor and consists primarily of impermissible “*post hoc* rationalization.” *Citizens to Preserve Overton Park, Inc. v. Volpe*, 401 U. S. 402, 420. The rule requiring a new decision before considering new reasons is not merely a formality. It serves important administrative law values by promoting agency accountability to the public, instilling confidence that the reasons given are not simply convenient litigating positions, and facilitating orderly review. Each of these values would be markedly undermined if this Court allowed DHS to rely on reasons offered nine months after the rescission and after three different courts had identified flaws in the original explanation. Pp. 20–24.

(b) Acting Secretary Duke’s rescission memorandum failed to consider important aspects of the problem before the agency. Although Duke was bound by the Attorney General’s determination that DACA is illegal, see 8 U. S. C. § 1103(a)(1), deciding how best to address that determination involved important policy choices reserved for DHS. Acting Secretary Duke plainly exercised such discretionary authority in winding down the program, but she did not appreciate the full scope of her discretion. The Attorney General concluded that the legal defects in DACA mirrored those that the courts had recognized in DAPA. The Fifth Circuit, the highest court to offer a reasoned opinion on DAPA’s

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legality, found that DAPA violated the INA because it extended eligibility for benefits to a class of unauthorized aliens. But the defining feature of DAPA (and DACA) is DHS's decision to defer removal, and the Fifth Circuit carefully distinguished that forbearance component from the associated benefits eligibility. Eliminating benefits eligibility while continuing forbearance thus remained squarely within Duke's discretion. Yet, rather than addressing forbearance in her decision, Duke treated the Attorney General's conclusion regarding the illegality of benefits as sufficient to rescind both benefits and forbearance, without explanation. That reasoning repeated the error in *Motor Vehicle Manufacturers Association of the United States, Inc. v. State Farm*—treating a rationale that applied to only part of a policy as sufficient to rescind the entire policy. 463 U. S. 29, 51. While DHS was not required to “consider all policy alternatives,” *ibid.*, deferred action was “within the ambit of the existing” policy, *ibid.*; indeed, it was the centerpiece of the policy. In failing to consider the option to retain deferred action, Duke “failed to supply the requisite ‘reasoned analysis.’” *Id.*, at 57.

That omission alone renders Duke's decision arbitrary and capricious, but it was not the only defect. Duke also failed to address whether there was “legitimate reliance” on the DACA Memorandum. *Smiley v. Citibank (South Dakota), N. A.*, 517 U. S. 735, 742. Certain features of the DACA policy may affect the strength of any reliance interests, but those features are for the agency to consider in the first instance. DHS has flexibility in addressing any reliance interests and could have considered various accommodations. While the agency was not required to pursue these accommodations, it was required to assess the existence and strength of any reliance interests, and weigh them against competing policy concerns. Its failure to do so was arbitrary and capricious. Pp. 24–33.

THE CHIEF JUSTICE, joined by JUSTICE GINSBURG, JUSTICE BREYER, and JUSTICE KAGAN, concluded in Part IV that respondents' claims fail to establish a plausible inference that the rescission was motivated by animus in violation of the equal protection guarantee of the Fifth Amendment. Pp. 33–35.

ROBERTS, C. J., delivered the opinion of the Court, except as to Part IV. GINSBURG, BREYER, and KAGAN, JJ., joined that opinion in full, and SOTOMAYOR, J., joined as to all but Part IV. SOTOMAYOR, J., filed an opinion concurring in part, concurring in the judgment in part, and dissenting in part *post*, p. 36. THOMAS, J., filed an opinion concurring in the judgment in part and dissenting in part, in which ALITO and GORSUCH, JJ., joined *post*, p. 39. ALITO, J., *post*, p. 63, and KAVANAUGH, J., *post*, p. 64, filed opinions concurring in the judgment in part and dissenting in part.

Solicitor General Francisco argued the cause for petitioners in all cases. With him on the briefs were *Assistant Attorney General Hunt*, *Deputy Solicitor General Wall*, *Deputy Assistant Attorney General Mooppan*, *Jonathan Y. Ellis*, *Mark B. Stern*, and *Thomas Pulham*.

Theodore B. Olson argued the cause for private respondents in all cases. With him on the briefs in Nos. 18–587 and 18–589 were *Stuart F. Delery*, *Matthew S. Rozen*, *Andrew J. Wilhelm*, *Theodore J. Boutros, Jr.*, *Ethan D. Dettmer*, *Jonathan N. Soleimani*, *Mark D. Rosenbaum*, *Judy London*, *Erwin Chemerinsky*, *Laurence H. Tribe*, *Luis Cortes Romero*, *Leah M. Litman*, *Stacey M. Leyton*, *James R. Williams*, *Greta S. Hansen*, *Michael J. Wishnie*, *Muneer I. Ahmad*, *Marisol Orihuela*, *Karen C. Tumlin*, *Amy S. Taylor*, *Trudy S. Rebert*, *Araceli Martínez-Olguín*, *Mayra B. Joachin*, and *Scott Foletta*. On the brief for respondent Regents of the University of California et al. in No. 18–587 were *Robert A. Long*, *Mark H. Lynch*, *Alexander A. Berengaut*, *Megan A. Crowley*, *David Watnick*, *Charles F. Robinson*, *Margaret Wu*, and *Brian Danitz*. On the brief in No. 18–588 were *Lindsay C. Harrison*, *Ian Heath Gershengorn*, *Thomas J. Perrelli*, *Matthew E. Price*, *Ishan K. Bhabha*, *Benjamin M. Eidelson*, *Joseph M. Sellers*, *Ramona E. Romero*, *Wesley Markham*, *Cynthia L. Randall*, *David J. Strom*, and *Peter J. Ford*.

Michael J. Mongan, Solicitor General of California, argued the cause for state respondents in all cases. With him on the brief in No. 18–587 were *Xavier Becerra*, Attorney General of California, *Michael L. Newman*, Senior Assistant Attorney General, *Samuel P. Siegel* and *Joshua Patashnik*, Deputy Solicitors General, and *Shubhra Shivpuri* and *James F. Zahradka II*, Deputy Attorneys General, by *Aaron M. Frey*, Attorney General of Maine, and *Susan P. Herman*, Deputy Attorney General, by *Brian E. Frosh*, Attorney General of Maryland, *Steven M. Sullivan*, Solicitor General, and *Leah J. Tulin*, Assistant Attorney General, and by *Keith Ellison*, Attorney General of Minnesota, *Liz Kramer*, Solicitor

Counsel

General, and *Jacob Campion*, Assistant Attorney General. On the brief in No. 18–589 were *Letitia James*, Attorney General of New York, *Barbara D. Underwood*, Solicitor General, *Anisha S. Dasgupta*, Deputy Solicitor General, *Andrew W. Amend*, Assistant Deputy Solicitor General, and *David S. Frankel*, Assistant Solicitor General, and by the Attorneys General for their respective jurisdictions as follows: *Phil Weiser* of Colorado, *William Tong* of Connecticut, *Kathy Jennings* of Delaware, *Karl A. Racine* of the District of Columbia, *Clare E. Connors* of Hawaii, *Kwame Raoul* of Illinois, *Thomas J. Miller* of Iowa, *Maura Healey* of Massachusetts, *Hector H. Balderas* of New Mexico, *Josh Stein* of North Carolina, *Ellen F. Rosenblum* of Oregon, *Josh Shapiro* of Pennsylvania, *Peter F. Neronha* of Rhode Island, *Thomas J. Donovan* of Vermont, *Mark R. Herring* of Virginia, and *Robert W. Ferguson* of Washington.†

†Briefs of *amici curiae* urging reversal in all cases were filed for the State of Texas et al. by *Ken Paxton*, Attorney General of Texas, *Kyle D. Hawkins*, Solicitor General, *Jeffrey C. Mateer*, First Assistant Attorney General, *Matthew H. Frederick*, Deputy Solicitor General, and *Ari Cuenin* and *Lanora C. Pettit*, Assistant Solicitors General, and by the Attorneys General for their respective States as follows: *Steve Marshall* of Alabama, *Kevin G. Clarkson* of Alaska, *Mark Brnovich* of Arizona, *Leslie Rutledge* of Arkansas, *Ashley Moody* of Florida, *Derek Schmidt* of Kansas, *Jeff Landry* of Louisiana, *Doug Peterson* of Nebraska, *Alan Wilson* of South Carolina, *Jason R. Ravensborg* of South Dakota, and *Patrick Morrissey* of West Virginia; for the Cato Institute et al. by *Ilya Shapiro* and *Josh Blackman*; for the Center for Constitutional Jurisprudence by *John C. Eastman* and *Anthony T. Caso*; for Citizens United et al. by *Robert J. Olson*, *Jeremiah L. Morgan*, *Herbert W. Titus*, and *William J. Olson*; for the Immigration Reform Law Institute by *Christopher J. Hajec*; for Save Jobs USA et al. by *John M. Miano*; for the Southeastern Legal Foundation by *Kurt R. Hilbert*, *Kelly H. Brolly*, and *Kimberly S. Hermann*; and for Ronald A. Cass et al. by *Mr. Cass, pro se*.

Briefs of *amici curiae* urging affirmance in all cases were filed for the State of Nevada et al. by *Aaron D. Ford*, Attorney General of Nevada, *Heidi Parry Stern*, Solicitor General, *Craig A. Newby*, Deputy Solicitor General, *Dana Nessel*, Attorney General of Michigan, *Eric J. Wilson*, Deputy Attorney General of Wisconsin, and *Steve Bullock*, Governor of Montana; for Administrative Law Practitioners by *Kevin K. Russell*, *Daniel*

CHIEF JUSTICE ROBERTS delivered the opinion of the Court, except as to Part IV.

In the summer of 2012, the Department of Homeland Security (DHS) announced an immigration program known as De-

Woofter, Charles H. Davis, and Erica Oleszczuk Evans; for Administrative Law Scholars by Seth P. Waxman and Alan E. Schoenfeld; for Alianza Americas et al. by Neil V. McKittrick; for the American Council on Education et al. by Neal K. Katyal, Jessica L. Ellsworth, and Mitchell P. Reich; for the American Historical Association et al. by Pratik A. Shah, Z. W. Julius Chen, Jessica Weisel, and Robert S. Chang; for the American Professional Society on the Abuse of Children et al. by Mary Kelly Persyn and Kelsi Brown Corkran; for the Association of American Medical Colleges et al. by Jonathan S. Franklin, Heather J. Alarcon, and Frank R. Trinity; for Current and Former Prosecutors et al. by Mary B. McCord, Joshua A. Geltzer, Annie L. Owens, Matthew J. Piers, and Caryn C. Lederer; for Current Members of Congress et al. by Elizabeth B. Wydra, Brianne J. Gorod, and Brian R. Frazelle; for Empirical Scholars by Nikolas Bowie and Oren Nimni; for Former Homeland Security and Immigration Officials by Joshua Riley, Menno Goedman, Albert Giang, Jeh C. Johnson, and Masha G. Hansford; for Former National Security Officials by Harold Hongju Koh, Hope R. Metcalf, and Phillip Spector; for Former Service Secretaries et al. by Charles B. Klein, Peter E. Perkowski, and Harvey Weiner; for the Government of the United Mexican States by Adela Elvia Ruth McChesney and Faye Magdalena Kolly; for Immigration Law Scholars by Harry Lee; for Institutions of Higher Education by Bruce V. Spiva; for the Lawyers' Committee for Civil Rights Under Law et al. by William D. Coston, Martin L. Saad, Kristen Clarke, Jon Greenbaum, Dariely Rodriguez, and Phylicia H. Hill; for the NAACP Legal Defense & Education Fund, Inc., et al. by Daniel Harawa, Sherrilyn A. Ifill, Janai S. Nelson, Samuel Spital, Natasha Merle, Raymond Audain, and Cara McClellan; for the National Association of Home Builders et al. by Gavin R. Villareal; for the National Education Association et al. by Alice O'Brien, Emma Leheny, and Lubna A. Alam; for the National Queer Asian Pacific Islander Alliance et al. by Susan M. Finegan; for the National School Boards Association et al. by Richard P. Bress and Francisco M. Negrón, Jr.; for Nineteen Colleges and Universities by Anton Metlitsky and Jennifer B. Sokoler; for Nonprofit Legal Services Organizations by Maureen P. Alger, Monique R. Sherman, Jonathan S. Kolodner, and Jessa DeGroot; for Public Citizen et al. by Scott L. Nelson and Allison M. Zieve; for the Public Interest Law Center et al. by William Alden McDaniel, Jr., Thomas W. Hazlett, and Mansi G. Shah; for Service Employees Interna-

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ferred Action for Childhood Arrivals, or DACA. That program allows certain unauthorized aliens who entered the United States as children to apply for a two-year forbearance of removal. Those granted such relief are also eligible for work authorization and various federal benefits. Some 700,000 aliens have availed themselves of this opportunity.

Five years later, the Attorney General advised DHS to rescind DACA, based on his conclusion that it was unlawful. The Department's Acting Secretary issued a memorandum terminating the program on that basis. The termination was challenged by affected individuals and third parties who alleged, among other things, that the Acting Secretary had violated the Administrative Procedure Act (APA) by failing to adequately address important factors bearing on her decision. For the reasons that follow, we conclude that the Acting Secretary did violate the APA, and that the rescission must be vacated.

Page Proof Pending Publication

In June 2012, the Secretary of Homeland Security issued a memorandum announcing an immigration relief program

tional Union et al. by *Deepak Gupta, Nicole G. Berner, Claire Prestel, Harold C. Becker, Matthew J. Ginsburg, and Judith Rivlin*; for Teach for America, Inc., by *Ronald G. Blum and Harvey L. Rochman*; for *Texas v. United States* Defendant-Intervenors DACA Recipients et al. by *Nina Perales, Douglas Hallward-Driemeier, Gurbir S. Grewal, Attorney General of New Jersey, and Jeremy M. Feigenbaum and Glenn J. Moramarco*, Assistant Attorneys General; for the United States Conference of Catholic Bishops et al. by *Christopher J. Wright and Stephen W. Miller*; for United We Dream et al. by *Peter Karanjia and Geoffrey Brounell*; for Tim Cook et al. by *E. Joshua Rosenkranz, Mark S. Davies, Thomas M. Bondy, Jeremy R. Peterman, and Aaron Brecher*; for 109 Cities et al. by *Margaret L. Carter, Daniel R. Suvor, Michael N. Feuer, James P. Clark, Valerie L. Flores, Danielle Goldstein, and Michael Dundas*; for 127 Religious Organizations by *Steven A. Zalesin, Adeel A. Mangi, Farhana Khara, and Juvaria Khan*; and for 143 U. S. Business Associations et al. by *Andrew J. Pincus*.

for “certain young people who were brought to this country as children.” App. to Pet. for Cert. in No. 18–587, p. 97a (App. to Pet. for Cert.). Known as DACA, the program applies to childhood arrivals who were under age 31 in 2012; have continuously resided here since 2007; are current students, have completed high school, or are honorably discharged veterans; have not been convicted of any serious crimes; and do not threaten national security or public safety. *Id.*, at 98a. DHS concluded that individuals who meet these criteria warrant favorable treatment under the immigration laws because they “lacked the intent to violate the law,” are “productive” contributors to our society, and “know only this country as home.” *Id.*, at 98a–99a.

“[T]o prevent [these] low priority individuals from being removed from the United States,” the DACA Memorandum instructs Immigration and Customs Enforcement to “exercise prosecutorial discretion[] on an individual basis . . . by deferring action for a period of two years, subject to renewal.” *Id.*, at 100a. In addition, it directs U.S. Citizenship and Immigration Services (USCIS) to “accept applications to determine whether these individuals qualify for work authorization during this period of deferred action,” *id.*, at 101a, as permitted under regulations long predating DACA’s creation, see 8 CFR § 274a.12(c)(14) (2012) (permitting work authorization for deferred action recipients who establish “economic necessity”); 46 Fed. Reg. 25080–25081 (1981) (similar). Pursuant to other regulations, deferred action recipients are considered “lawfully present” for purposes of, and therefore eligible to receive, Social Security and Medicare benefits. See 8 CFR § 1.3(a)(4)(vi); 42 CFR § 417.422(h) (2019).

In November 2014, two years after DACA was promulgated, DHS issued a memorandum announcing that it would expand DACA eligibility by removing the age cap, shifting the date-of-entry requirement from 2007 to 2010, and extending the deferred action and work authorization period to